

EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

FIRST SECTION

CASE OF GABDULVALEYEV AND OTHERS v. RUSSIA

(Applications nos. 60966/17 and 19 others –
see appended list)

JUDGMENT

STRASBOURG

20 July 2023

This judgment is final but it may be subject to editorial revision.



In the case of Gabdulvaleyev and Others v. Russia,

The European Court of Human Rights (First Section), sitting as a Committee composed of:

Lətif Hüseynov*, President*,
Ivana Jelić,
Erik Wennerström*, judges*,

and Viktoriya Maradudina, *Acting Deputy Section Registrar,*

Having deliberated in private on 29 June 2023,

Delivers the following judgment, which was adopted on that date:

PROCEDURE

1. The case originated in applications against Russia lodged with the Court under Article 34 of the Convention for the Protection of Human Rights and Fundamental Freedoms ("the Convention") on the various dates indicated in the appended table.

2. The Russian Government ("the Government") were given notice of the applications.

THE FACTS

3. The list of applicants and the relevant details of the applications are set out in the appended table.

4. The applicants complained of the disproportionate measures taken against them as organisers or participants of public assemblies. Some applicants also raised other complaints under the provisions of the Convention.

THE LAW

I. JOINDER OF THE APPLICATIONS

5. Having regard to the similar subject matter of the applications, the Court finds it appropriate to examine them jointly in a single judgment.

II. JURISDICTION

6. The Court observes that the facts giving rise to the alleged violations of the Convention occurred prior to 16 September 2022, the date on which the Russian Federation ceased to be a party to the Convention. The Court therefore decides that it has jurisdiction to examine the present applications (see *Fedotova and Others v. Russia* [GC], nos. 40792/10 and 2 others, §§ 68-73, 17 January 2023).

III. ALLEGED VIOLATION OF ARTICLE 11 OF THE CONVENTION

7. The applicants complained principally of disproportionate measures taken against them as organisers or participants of public assemblies, namely their arrest in relation to the dispersal of these assemblies and their conviction for administrative offences. They relied, expressly or in substance, on Article 11 of the Convention. Some applicants also invoked Article 10; however, these complaints fall to be examined under Article 11 of the Convention.

8. The Court refers to the principles established in its case-law regarding freedom of assembly (see *Kudrevičius and Others v. Lithuania* [GC], no. 37553/05, ECHR 2015, with further references) and proportionality of interference with it (see *Oya Ataman v. Turkey*, no. 74552/01, ECHR 2006-XIV, and *Hyde Park and Others v. Moldova*, no. 33482/06, 31 March 2009).

9. In the leading cases of *Frumkin v. Russia,* no. 74568/12, ECHR 2016 (extracts); *Navalnyy and Yashin v. Russia,* no. 76204/11, 4 December 2014; and *Kasparov and Others v. Russia,* no. 21613/07, 3 October 2013, the Court already found a violation in respect of issues similar to those in the present case.

10. Having examined all the material submitted to it, the Court has not found any fact or argument capable of persuading it to reach a different conclusion as to the admissibility and merits of these complaints (see, in particular, *Lashmankin and Others v. Russia*, nos. 57818/09 and 14 others, §§ 345-60 and 404-77, 7 February 2017, and *Kablis v. Russia*, nos. 48310/16 and 59663/17, §§ 67-71, 30 April 2019). Having regard to its case-law on the subject, the Court considers that in the instant case the interferences with the applicants' freedom of assembly were not "necessary in a democratic society".

11. These complaints are therefore admissible and disclose a breach of Article 11 of the Convention.

IV. OTHER ALLEGED VIOLATIONS UNDER WELL-ESTABLISHED CASE-LAW

12. Some applicants submitted other complaints which also raised issues under the Convention and its Protocols, given the relevant well-established case-law of the Court (see appended table). These complaints are not manifestly ill-founded within the meaning of Article 35 § 3 (a) of the Convention, nor are they inadmissible on any other ground. Accordingly, they must be declared admissible.

13. Having examined all the material before it, the Court concludes that these complaints also disclose violations of the Convention and its Protocols in the light of its findings in *Butkevich v. Russia*, no. 5865/07, §§ 63-65,

13 February 2018, *Tsvetkova and Others v. Russia*, nos. 54381/08 and 5 others, §§ 115-31, 10 April 2018, and *Korneyeva v. Russia*, no. 72051/17, §§ 34-36, 8 October 2019, as to various aspects of unlawful deprivation of liberty of organisers or participants of public assemblies; *Karelin v. Russia*, no. 926/08, §§ 58-85, 20 September 2016, concerning the absence of a prosecuting party in the proceedings under the Code of Administrative Offences (CAO); *Tsvetkova and Others*, cited above, §§ 179-91, and *Martynyuk v. Russia*, no. 13764/15, §§ 38-42, 8 October 2019, concerning lack of suspensive effect of an appeal under the CAO.

V. REMAINING COMPLAINTS

14. Having regard to its findings above, the Court does not consider it necessary to examine separately the remaining complaints raised by some of the applicants under Article 6 of the Convention about the fairness of the administrative-offence proceedings in their cases.

15. The applicant in application no. 28903/19 also raised a complaint under Article 5 of the Convention. The Court considers that, in the light of all the material in its possession, this complaint is belated. It follows that this part of the application must be rejected in accordance with Article 35 §§ 1 and 4 of the Convention.

VI. APPLICATION OF ARTICLE 41 OF THE CONVENTION

16. Regard being had to the documents in its possession and to its case-law (see in particular *Navalnyy and Others v. Russia* [Committee], nos. 25809/17 and 14 others, § 22, 4 October 2022), the Court finds it reasonable to award the sums indicated in the appended table.

FOR THESE REASONS, THE COURT, UNANIMOUSLY,

1. *Decides* to join the applications;

2. *Holds* that it has jurisdiction to deal with the applicants' complaints as they relate to facts that took place before 16 September 2022;

3. *Declares* the complaints under Article 11 of the Convention and the other complaints under the well-established case-law of the Court, as set out in the appended table, admissible, *finds* that there is no need to examine separately the remaining complaints under Article 6 of the Convention, and *declares* the remainder of application no. 28903/19 inadmissible;

4. *Holds* that these complaints disclose a breach of Article 11 of the Convention;

5. *Holds* that there has been a violation of the Convention and the Protocols thereto as regards the other complaints raised under the well-established case-law of the Court (see appended table);

6. *Holds*
   (a) that the respondent State is to pay the applicants, within three months, the amounts indicated in the appended table, to be converted into the currency of the respondent State at the rate applicable at the date of settlement;
   (b) that from the expiry of the above-mentioned three months until settlement simple interest shall be payable on the above amounts at a rate equal to the marginal lending rate of the European Central Bank during the default period plus three percentage points.

Done in English, and notified in writing on 20 July 2023, pursuant to Rule 77 §§ 2 and 3 of the Rules of Court.

Viktoriya Maradudina Acting Deputy Registrar	Lətif Hüseynov President

APPENDIX

List of applications raising complaints under Article 11 of the Convention
(disproportionate measures against organisers and participants of public assemblies)

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses (in euros)[1]
1.	60966/17 16/08/2017	**Azat Sadgatovich GABDULVALEYEV** 1964	Khrunova Irina Vladimirovna Kazan	Anticorruption rally Kazan 26/03/2017	Article 20.2 § 5 of CAO	30 hours of community work	Supreme Court of the Tatarstan Republic 21/06/2017		4,000
				Anticorruption rally Kazan 14/05/2017	Article 20.2 § 2 of CAO	administrative detention of 10 days	Supreme Court of the Tatarstan Republic 28/06/2017		
	31573/18 20/06/2018			Anticorruption rally Kazan 12/06/2017	Article 20.2 § 1 of CAO	fine of RUB 20,000	Supreme Court of the Tatarstan Republic 20/12/2017		
2.	79311/17 09/11/2017	**Aleksandr Andreyevich MARKIN** 1999	Terekhov Konstantin Ilyich Moscow	Anticorruption rally Bryansk 26/03/2017	Article 20.2 § 5 of CAO	25 hours of community work	Bryansk Regional Court 24/05/2017	Art. 5 (1) - unlawful deprivation of liberty: escorting to the police station for the purpose of drawing up a record of administrative offence, on 30/03/2017, when the applicant was taken from his home by the police Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings – final decision: Bryansk Regional Court, 24/05/2017	4,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses (in euros)[1]
3.	38493/18 02/08/2018	**Vladislav Yuryevich ZLOBIN** 1992	Zhdanov Ivan Yuryevich Vilnius	Rally in support of A. Navalnyy Lipetsk 28/01/2018	Article 20.2 § 8 of CAO	administrative detention of 20 days	Lipetsk Regional Court 02/02/2018	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings – final decision: Lipetsk Regional Court, 02/02/2018	3,500
4.	41781/18 17/08/2018	**Ruslan Tabrizovich SHAVEDDINOV** 1996	Zhdanov Ivan Yuryevich Vilnius	Anticorruption rally Moscow 12/06/2017 Rally in support of I. Golunov Moscow 12/06/2019	Article 20.2 § 5 of CAO Article 20.2 § 8 of CAO	fine of RUB 15,000 administrative detention of 9 days	Moscow City Court 26/02/2018 Moscow City Court 04/07/2019	Art. 5 (1) unlawful deprivation of liberty: escorting to the police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances": - from 03.00 p.m. to 10.00 p.m. on 12/06/2017, - from 2.15 p.m. to 9.45 p.m. on 12/06/2019, while the record of the administrative offence was drawn up only on 17/06/2019; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings – final decisions: Moscow City Court, 26/02/2018 and 04/07/2019; Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - The sentence of administrative detention imposed on the applicant by the court of first instance on 28/06/2019 was executed immediately, on account of the lack of suspensive effect of an appeal under the CAO	5,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses (in euros)[1]
5.	4129/19 26/12/2018	**Sergey Anatolyevich UKHOV** 1985	Pershakova Yelena Yuryevna Moscow	Opposition rally Perm 05/05/2018	Article 20.2 § 8 of CAO	fine of RUB 250,000	Perm Regional Court 26/06/2018	Art. 5 (1) - unlawful deprivation of liberty: escorting to the police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 12.30 a.m. to 06.00 p.m. on 10/05/2018; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings – final decision: Perm Regional Court, 26/06/2018	6,500
6.	5170/19 15/01/2019	**Dmitriy Andreyevih KORZHENEVSKIY** 1984	Zhdanov Ivan Yuryevich Vilnius	Opposition rally Ivanovo 05/05/2018	Article 20.2 § 2 of CAO	fine of RUB 15,000	Ivanovo Regional Court 17/07/2018	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings – final decision: Ivanovo Regional Court, 17/07/2018	3,500
7.	7466/19 22/01/2019	**Daniil Andreyevich GOLOVACHEV** 2000	Sabinin Andrey Vasilyevich Stavropol	Rally against the pension reform Stavropol 09/09/2018	Article 20.2 § 5 of CAO	fine of RUB 10,000	Stavropol Regional Court 24/10/2018	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings – final decision: Stavropol Regional Court, 24/10/2018	3,500
8.	8700/19 25/01/2019	**Sergey Eduardovich KOMANDIROV** 1995	Zhdanov Ivan Yuryevich Vilnius	Opposition rally Smolensk 05/05/2018	Article 20.2 § 5 of CAO	fine of RUB 10,000	Smolensk Regional Court 26/09/2018		3,500
9.	13423/19 25/02/2019	**Yuriy Sergeyevich KUZMINYKH** 1978	Bushmakov Aleksey Vladimirovich Yekaterinburg	Opposition rally Yekaterinburg 05/05/2018	Article 20.2 § 5 of CAO	fine of RUB 10,000	Sverdlovsk Regional Court 05/09/2018	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings – final decision: Sverdlovsk Regional Court, 05/09/2018	3,500

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10.	13752/19 01/03/2019	**Anastasiya Aleksandrovna VASILYEVA** 1984	Sholokhov Igor Nikolayevich Kazan	Rally against the pension reform Omsk 09/09/2018	Article 20.2 § 5 of CAO	fine of RUB 10,000	Omsk Regional Court 30/10/2018	Art. 5 (1) - unlawful deprivation of liberty: escorting to the police station for the purpose of drawing up a record of administrative-offence; detention in excess of 3 hours and without "exceptional circumstances": - from 03.05 p.m. to 09.00 p.m. on 09/09/2018, without any record of the applicant's deprivation of liberty, then - from 09.10 a.m. to 06.10 p.m. on 10/09/2018, till the hearings on the administrative-offence case; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings – final decision: Omsk Regional Court, 30/10/2018	4,000
11.	19932/19 26/03/2019	**Yevgeniy Valeryevich DOMOZHIROV** 1974	Cherkasov Vitaliy Viktorovich St Petersburg	Rally against the pension reform Vologda 05/07/2018 Rally against the pension reform Vologda 09/09/2018	Article 20.2 § 1 of CAO Article 20.2 § 8 of CAO	fine of RUB 10,000 administrative detention of 15 days	Vologda Regional Court 29/10/2018 Vologda Regional Court 09/10/2018	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings – final decisions: Vologda Regional Court, 09/10/2018 and 29/10/2018	5,000
12.	25301/19 19/04/2019	**Aleksey Aleksandrovich GRIGORYEV** 1988	Pomazuyev Aleksandr Yevgenyevich Vilnius	Rally against the pension reform Murmansk 01/07/2018 Rally against the pension reform Murmansk 09/09/2018	Article 20.2 § 8 of CAO Article 20.2 § 8 of CAO	fine of RUB 150,000 fine of RUB 150,000	Murmansk Regional Court 21/11/2018 Murmansk Regional Court 10/12/2018	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings – final decisions: Murmansk Regional Court, 21/11/2018 and 10/12/2018	6,500

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13.	26255/19 08/05/2019	**Aleksandr Aleksandrovich SURINOV** 2000	Pomazuyev Aleksandr Yevgenyevich Vilnius	Rally against the pension reform Murmansk 09/09/2018	Article 20.2 § 8 of CAO	fine of RUB 150,000	Murmansk Regional Court 23/11/2018	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings – final decision: Murmansk Regional Court, 23/11/2018	5,000
14.	27384/19 08/05/2019	**Viktor Vyacheslavovich LUTCHENKO** 1989	Pomazuyev Aleksandr Yevgenyevich Vilnius	Rally against the pension reform Khabarovsk 09/09/2018	Article 20.2 § 5 of CAO	fine of RUB 10,000	Khabarovsk Regional Court 23/11/2018	Art. 5 (1) - unlawful deprivation of liberty: escorting to the police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 02.15 p.m. to 5.50 p.m. on 9/09/2018; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings – final decision: Khabarovsk Regional Court, 23/11/2018	4,000
15.	28903/19 16/05/2019	**Artem Aleksandrovich KOVALEVSKIY** 1991	Sholokhov Igor Nikolayevich Kazan	Rally against the pension reform Omsk 09/09/2018	Article 20.2 § 5 of CAO	fine of RUB 10,000	Omsk Region Court 04/12/2018	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings – final decision: Omsk Region Court, 04/12/2018	3,500
16.	48039/19 03/09/2019	**Olga Igorevna ZHULIMOVA** 1992		Rally against the pension reform Penza 09/09/2018	Article 20.2 § 6.1 of CAO	fine of RUB 10,000	Penza Regional Court 06/03/2019	Art. 5 (1) unlawful deprivation of liberty: escorting to the police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 12.45 a.m. on 20/09/2018 till the hearings in the applicant's administrative-offence case on 21/09/2018	4,000

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17.	3736/20 27/12/2019	**Kseniya Aleksandrovna SEREDKINA** 1986	Pomazuyev Aleksandr Yevgenyevich Vilnius	Rally for fair elections to Mosgorduma Rostov-on-Don 10/08/2019	Article 20.2 § 5 of CAO	fine of RUB 20,000	Rostov Regional Court 11/09/2019	Art. 5 (1) - unlawful deprivation of liberty: escorting to the police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 03.00 p.m. on 10/08/2019 to the hearings on the applicant's administrative offence case on the same day Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings – final decision: Rostov Regional Court, 11/09/2019	4,000
18.	5140/20 10/01/2020	**Olga Andreyevna GUSEVA** 1995	Cherkasov Vitaliy Viktorovich St Petersburg	Rally for fair elections to Mosgorduma St Petersburg 10/08/2019	Article 20.2 § 2 of CAO	administrative detention of 6 days	St Petersburg City Court 16/08/2019	Art. 5 (1) - unlawful deprivation of liberty: escorting to the police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 02.00 p.m. on 10/08/2019 to 03.00 a.m. on 11/08/2019; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings – final decision: St Petersburg City Court, 16/08/2019 Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - The sentence of administrative detention imposed on the applicant by the court of first instance was executed immediately, on account of the lack of suspensive effect of an appeal under the CAO	5,000

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19.	17890/20 30/03/2020	**Artem Vladimirovich SAYGALOV** 1996	Pomazuyev Aleksandr Yevgenyevich Vilnius	Rally for fair elections to Mosgorduma Bryansk 10/08/2019	Article 20.2 § 2 of CAO	fine of RUB 20,000	Bryansk Regional Court 06/11/2019	Art. 5 (1) - unlawful deprivation of liberty: escorting to the police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 9.00. a.m. on 12/09/2019 (when the applicant came back to his hometown of Bryansk) to the hearings on the applicant's administrative-case offence on the same day; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings – final decision: Bryansk Regional Court, 06/11/2019	4,000

[1] Plus any tax that may be chargeable to the applicants.